

VCU311927 Ponce, Gabriel vs. Central California Baking Company

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-28

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Ponce, Gabriel vs. Central California Baking Company

Case No.: VCU311927

Date: September 28, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: The Court notes it continued this hearing previously as to the notice period, lodestar, and presently incurred costs. No updated declaration appears to have been filed. The Court, therefore continues this motion to October 12, 2026, 8:30 am, Dept. 9.

Background Facts

At the outset, the Court acknowledges its prior ruling did not discuss the opposition to the motion and reply brief filed in support thereof.

The Court finds that the memorandum of understanding, fully executed March 6, 2026, lacked any negotiated term related to Plaintiff's resignation of employment. The Court further agrees that the argument Plaintiff could not act as a class representative if still employed as to the Waiting Time claim is a defense to liability and/or class certification. However, these defenses are subsumed by the settlement in this case. The Court notes the declaration by Davies indicates "Although the Class arguably could have seen a payout of approximately \$1,723,074 for waiting time penalties..." and that "Plaintiff discounted these claims assuming a 30% chance of class certification and 20% chance at the merits for both claims (the same estimates as used for the meal period claims), resulting in a realistic value of approximately \$103,300 for the waiting time claim." (Declaration of Davis ¶38.) The Court finds the negotiated settlement adequately takes into account such defenses placing it within the recognized range of reasonableness.

As such, the Court rejects the argument set forth in the opposition as confirming a settlement as to terms contained with respect to Plaintiff's employment status in the admittedly unsigned long-form agreement.

The Court notes it continued this hearing previously as to the notice period, lodestar, and presently incurred costs. No updated declaration appears to have been filed. The Court, therefore continues this motion to October 12, 2026, 8:30 am, Dept. 9.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.